3920

Executive Order

AN EXECUTIVE ORDER TRANSFERRING A PORTION OF THE ARMY SUPPLY BASE, AT CHARLESTON, S. C. FROM THE CONTROL OF THE WAR DEPARTMENT TO THE CONTROL OF THE UNITED STATES SHIPPING BOARD.

WHEREAS the property described below comes within the terms of Section 17 of an Act of Congress, approved June 5th, 1920, (41 Stat. 994) entitled: "An Act to provide for the promotion and maintenance of the American Merchant Marine, to repeal certain emergency legislation and provide for the disposition, regulation, and use of property acquired thereunder, and for other purposes," known as the Merchant Marine Act, 1920; and, as I deem the transfer thereof, as below provided, to be for the best interests of the United States;

Amended
No. 6164

NOW THEN, by virtue of the power and authority vested in me by Section 17 of the above described Act, it is ordered:

The possession and control of all that portion of the Charleston Quartermaster Intermediate Depot, U. S. A., located near Charleston, South Carolina, designated as Tracts Nos. 1 and 2 on the map on file in the Office of the Quartermaster General of the Army, entitled: "Charleston Port Terminals, S. C., Boundary Survey of part of Quartermaster Terminal—Plan No. 6243-107", dated May 10th, 1923;"—together with all improvements thereon, consisting of docks piers, warehouses, wharves and terminal equipment and facilities or parts thereof, including all leasehold easements, rights of way, riparian rights, and other rights, estates or interests therein or appurtenant thereto, owned by the United States, are hereby transferred, in their present condition, from the War Department to the United States Shipping Board.

Provided, however, there are hereby reserved to the War Department, the following rights, privileges and easements in the property thus transferred:

(1) A right of way over railroad tracks on Tract No. 1, referred to above, for the purpose of ingress and egress, with cars and locomotives, to adjoining property remaining under the control of the War Department. So long as such tracks are maintained by the United States Shipping Board for its own purposes, the War Department shall not be required to contribute to the expense of their maintenance; but the United States Shipping Board shall not be under obligation to maintain them for the use of the War Department, if the Board elects to abandon them; in that event, the War Department shall have an appropriate right of way through Tract No. 1 for such connecting track or tracks as it may build and maintain.

(2) There is also reserved to the War Department the right to enter in and upon Tract No. 2, referred to above, for the purpose, at the cost of the War Department, of maintaining and repairing the sewer at present thereon, extending from Tract No. 4, as shown on the map referred to above, to the Cooper River; and the United States Shipping Board, its agents or lessees, shall in no way interfere with such maintenance and upkeep.

AND IT IS HEREBY FURTHER PROVIDED:

(a) This transfer is subject to the rights of the Charleston Port Terminal, lessee of the property hereby transferred, under a certain lease heretofore duly entered into by the War Department, dated June 15, 1923, which lease is subject to cancellation, at the instance of the United States, on thirty days notice, and it shall be the duty of the War Department to serve such notice, at the request of the United States Shipping Board. The original, or a duly authenticated copy of such lease shall be filed with the Secretary of the United States Shipping Board within twenty

days of the date of this order. The transfer is also subject to any commitments of space made in the fifth warehouse, counting from the southern end of the terminal, which warehouse is marked on the map as number 5, with respect to commodities in storage in said warehouse number 5, under certificates issued pursuant to the license held by the lessee from the Department of Agriculture, dated on or about August 17th, 1923.

(b) As equipment for transmitting and distributing electric current and water supply, and also a part of the sewer system, serves jointly the property hereby transferred to the United States Shipping Board, and property adjacent thereto, retained in the possession and control of the War Department, such equipment shall be maintained and operated, and compensation shall be made for the electric current and water supply used by the War Department, under an agreement between the Secretary of War and the United States Shipping Board, or as may be hereafter ordered.

This order shall take effect on the 15th day of December, 1923, at noon; and until that time the possession, control and protection of the property shall remain with the War Department.

All Executive Orders heretofore made are hereby amended and modified with relation to the property hereby transferred so far as may be necessary to conform with the provisions of this Order.

CALVIN COOLIDGE

THE WHITE HOUSE,

November 3, 1923.

[No. 3920.]

GOVERNMENT PRINTING OFFICE